

Underwritten by:  
American Modern Property and  
Casualty Insurance Company



Casper Norcross  
PO BOX 1185  
OLD FORGE NY 13420

January 23, 2025

**PolicyHolder:**  
Casper Norcross  
**Policy Number:**  
103-194-455  
**Policy Type:**  
Motorsports

Dear Casper Norcross

Recently one or more changes were made to your insurance policy. There is a change in your policy's rate because of the revision to your coverage.

So that you have a record of the changes, enclosed are the documents which describe the amended policy terms. Please keep these documents with the papers you already have on file. Together they are a complete statement of your insurance policy.

Thank you for the privilege of allowing us to protect you with this policy. It's a responsibility we take very seriously.

Sincerely,

A handwritten signature in black ink, appearing to read "Andreas Kleiner", with a stylized, flowing script.

Andreas Kleiner  
President and CEO  
American Modern Home Insurance Company

Customer Service

servicecenter@amig.com | [www.amig.com/customer](http://www.amig.com/customer)  
1-800-543-2644 phone | 8 a.m. to 8 p.m. Eastern | 1-800-217-5150 fax  
American Modern Insurance Group® | PO Box 740167 | Cincinnati, OH 45274-0167  
Please include your policy number and contact information on all correspondence.

IL-CW-CL-0019 10-15



## POLICY DECLARATIONS

American Modern Home Insurance Company

**Motorsports**

**Policy Change**



### Premium Summary

|                                             |                 |
|---------------------------------------------|-----------------|
| Vehicle #1: 2004 SKI-DOO LEGEND<br>380 FAN  | \$0.00          |
| Vehicle #2: 2015 POLARIS<br>ADVENTURE AX/YS | \$0.00          |
| Policy Coverages                            | \$226.00        |
| Tax and Fees                                | \$0.00          |
| <b>Total Policy Premium</b>                 | <b>\$226.00</b> |

Note: a minimum earned premium of \$50.00 applies to this policy.

### Policy Discounts

Multi-Vehicle Discount

### Policy Summary

**Policy Number:**  
103-194-455

**Policy Period:**  
01/31/2025 to 01/31/2026 12:01 A.M. Standard Time

**Named Insured(s):**  
Casper Norcross  
PO BOX 1185  
OLD FORGE NY 13420

### Contracted Agency:

RSG SPECIALTY LLC - #495001  
6450 TRANSIT RD.  
DEPEW NY 14043

### Your Agent:

PATRIOTIC INSURANCE GROUP BROKERAGE INC -  
#913886  
159 NY-28  
INLET NY 13360

### Drivers

#### Listed Drivers:

Maeve Ellery  
NIKOLIAI OREKHOV  
Casper Norcross

#### Accident / Violations:

#### Date:

### Policy Coverages

| Coverage                                        | Limit / Description                      | Premium         |
|-------------------------------------------------|------------------------------------------|-----------------|
| Liability - Bodily Injury and Property Damage   |                                          | \$180.00        |
| Bodily injury                                   | 100,000 Per person                       |                 |
| Bodily injury                                   | 300,000 Each accident                    |                 |
| Property damage                                 | 50,000 Each accident                     |                 |
| Passenger Liability                             | Included                                 |                 |
| Wrongful Death                                  | 50,000 Per person/100,000 Each accident  | Included        |
| Supplementary Uninsured / Underinsured Motorist | 100,000 Per person/300,000 Each accident | \$46.00         |
| <b>Policy Level Coverages Premium</b>           |                                          | <b>\$226.00</b> |

### Important Information

The maximum amount payable under SUM coverage shall be the policy's SUM limits reduced and thus offset by motor vehicle bodily injury liability insurance policy or bond payments received from, or on behalf of, any negligent party involved in the accident, as specified in the SUM endorsement.

### Policy Level Additional Costs

| Description                                 | Amount |
|---------------------------------------------|--------|
| <b>Total Policy Level Additional Costs:</b> |        |

## Motorsports Policy Declaration

American Modern Home Insurance Company

Policy Period: 01/31/2025 - 01/31/2026

Policy Number: 103-194-455

Policy Type: Motorsports



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**Vehicle #1: 2004 SKI-DOO LEGEND 380 FAN**

**Value:**

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## Motorsports Policy Declaration

American Modern Home Insurance Company

Policy Period: 01/31/2025 - 01/31/2026

Policy Number: 103-194-455

Policy Type: Motorsports



|                                                |                            |                                                  |                        |                                         |
|------------------------------------------------|----------------------------|--------------------------------------------------|------------------------|-----------------------------------------|
| <b>Vehicle ID Number:</b><br>2BPS291664V000680 | <b>Engine Size:</b><br>377 | <b>Storage:</b><br>Locked Garage/Building/BarnNo | <b>Modified:</b><br>No | <b>Registered for Street Use:</b><br>No |
|------------------------------------------------|----------------------------|--------------------------------------------------|------------------------|-----------------------------------------|

**Storage Address:**  
UNKNOWN, PRINCIPALLY USED IN NY 13420

**Registration Address:**  
UNKNOWN, PRINCIPALLY USED IN NY 13420

|                       |                        |
|-----------------------|------------------------|
| <b>Symbol:</b><br>M44 | <b>Territory:</b><br>1 |
|-----------------------|------------------------|

### Coverage Detail

| Coverage      | Limit / Description | Premium |
|---------------|---------------------|---------|
| Comprehensive |                     | \$0.00  |
| Collision     |                     | \$0.00  |

#### Important Information

This unit does not contain Comprehensive coverage.

This unit does not contain Collision coverage.

|         |        |
|---------|--------|
| Premium | \$0.00 |
|---------|--------|

### Discount Details

| Description            | Amount |
|------------------------|--------|
| Multi-Vehicle Discount | \$8.00 |

### Vehicle #2: 2015 POLARIS ADVENTURE AX/YS

**Value:**

|                                                |                            |                                                  |                        |                                         |
|------------------------------------------------|----------------------------|--------------------------------------------------|------------------------|-----------------------------------------|
| <b>Vehicle ID Number:</b><br>SN1DAPPS0FC521569 | <b>Engine Size:</b><br>600 | <b>Storage:</b><br>Locked Garage/Building/BarnNo | <b>Modified:</b><br>No | <b>Registered for Street Use:</b><br>No |
|------------------------------------------------|----------------------------|--------------------------------------------------|------------------------|-----------------------------------------|

**Storage Address:**  
UNKNOWN, PRINCIPALLY USED IN NY 13420

**Registration Address:**  
UNKNOWN, PRINCIPALLY USED IN NY 13420

|                       |                        |
|-----------------------|------------------------|
| <b>Symbol:</b><br>M44 | <b>Territory:</b><br>1 |
|-----------------------|------------------------|

### Coverage Detail

| Coverage      | Limit / Description | Premium |
|---------------|---------------------|---------|
| Comprehensive |                     | \$0.00  |
| Collision     |                     | \$0.00  |

#### Important Information

This unit does not contain Comprehensive coverage.

This unit does not contain Collision coverage.

|         |        |
|---------|--------|
| Premium | \$0.00 |
|---------|--------|

### Discount Details

| Description            | Amount  |
|------------------------|---------|
| Multi-Vehicle Discount | \$24.00 |

### Your Policy Documents

Your policy consists of this Policy Declaration and the documents in the following list. Please keep these together.

#### Policy Level Forms (Forms that apply to all Vehicles)

VS031(03-20) - Snowmobile Policy - New York

IL-CW-G-0001(01-15) - Signature Endorsement

VSA31(03-20) - Snowmobile Policy Amendment of Policy Provisions - New York

SM-NY-U-0001(03-20) - Explanation and Offer of Additional Coverage: Selection/Rejection of Supplementary Uninsured/Underinsured Motorists Coverage (New York)

VSW31(03-20) - Snowmobile Policy Supplementary Uninsured/Underinsured Motorist Endorsement - New York

PEF00(03-09) - Policy Execution Endorsement

## Motorsports Policy Declaration

American Modern Home Insurance Company

Policy Period: 01/31/2025 - 01/31/2026

Policy Number: 103-194-455

Policy Type: Motorsports



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**Forms that apply to vehicle #1: 2004, SKI-DOO, LEGEND 380 FAN, 2BPS291664V000680**

**Forms that apply to vehicle #2: 2015, POLARIS, ADVENTURE AX/YS, SN1DAPPS0FC521569**

## **Motorsports Policy Declaration**

American Modern Home Insurance Company

Policy Period: 01/31/2025 - 01/31/2026

Policy Number: 103-194-455

Policy Type: Motorsports



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## **Policy Maintenance Information**

It's easy to manage your policy online 24/7. You can make payments, file claims, view policy documents, and more. Go to [amig.com](http://amig.com) to create an account or log in today!

**PLEASE REVIEW THE INFORMATION CONTAINED IN THIS POLICY.  
IF ANY INFORMATION IS INCORRECT, PLEASE CONTACT:**

PATRIOTIC INSURANCE GROUP BROKERAGE INC  
(845) 610-5700

**Report a Claim: 1-800-375-2075**

American Modern Insurance Group

Mailing address  
PO Box 5323  
Cincinnati, OH 45201-5323

Main Administrative Office  
7000 Midland Blvd.  
Amelia, OH 45102-2607



## NEW YORK STATE INSURANCE IDENTIFICATION CARD

061 AMERICAN MODERN HOME INSURANCE COMPANY

Name & Address of Issuer

AMERICAN MODERN HOME INSURANCE COMPANY  
7000 MIDLAND BOULEVARD  
AMELIA OH 45102-2607  
PHONE: 1-800-543-2644

An authorized NEW YORK insurer has issued an Owner's Policy of liability Insurance complying with Article 6 (Motor Vehicle Financial Security Act) of the NEW YORK Vehicle and Traffic law to:

Casper Norcross  
PO BOX 1185  
OLD FORGE NY 13420

Policy Number  
103194455

Effective Date  
01/31/2025  
12:01 a. m.

(Not acceptable to obtain registration after 45 days from effective date)  
Applicable with respect to the following motor vehicle:

2004  
Year

Expiration Date  
01/31/2026  
12:01 a. m.

SKI-D  
Make

2BPS291664V000680

Vehicle Identification Number

THIS ID CARD MUST BE CARRIED IN THE INSURED VEHICLE FOR PRODUCTION UPON DEMAND

WARNING: Any person who issues or produces an ID card knowing that an Owner's Policy of insurance is not in effect may be committing a misdemeanor, in addition, a person who presents an ID card if insurance is not in effect may be committing a misdemeanor.

The name of the registrant and the name of the insured must coincide.

REPLACEMENT VEHICLE NOTATION:  
DMV WILL ONLY PROCESS A VEHICLE CHANGE (RE-REGISTRATION) USING THE REPLACED VEHICLE'S CURRENT REGISTRATION.

FS-20

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SKI-D  
Make

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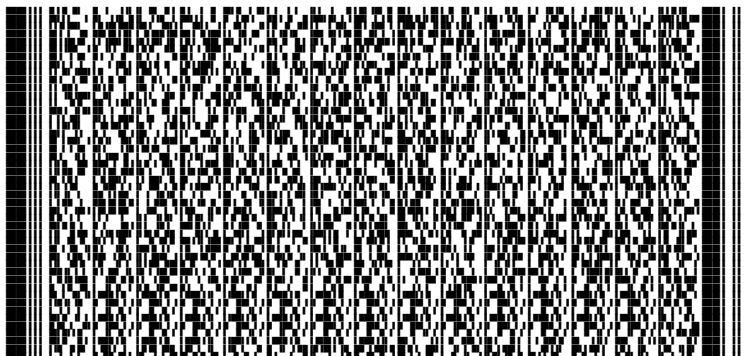
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FS-20

### FAX: Scanable Bar Code



### FAX INSTRUCTIONS:

1. The entire page must be faxed.
2. If submitted to DMV, either the entire page or the second card and larger bar code will be retained.
3. A faxed ID card must be replaced with a scanable ID card within 14 days of the effective date.
4. DMV will not accept a faxed ID card without a scanable barcode.

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**IN CASE OF ACCIDENT:**

REPORT ALL ACCIDENTS TO YOUR AGENT/COMPANY AS SOON AS POSSIBLE. OBTAIN THE FOLLOWING INFORMATION:

1. NAME AND ADDRESS OF EACH DRIVER, PASSENGER, AND WITNESS.
2. NAME OF INSURANCE COMPANY AND POLICY NUMBER FOR EACH VEHICLE INVOLVED.
3. NOTE THE DATE, TIME, AND LOCATION OF THE ACCIDENT.

**FOR CLAIMS CALL: 1-800-375-2075**

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AMELIA OH 45102-2607

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OLD FORGE NY 13420

Policy Number

103194455

Effective Date

01/31/2025

12:01 a. m.

(Not acceptable to obtain registration after 45 days from effective date)

Applicable with respect to the following motor vehicle:

2015  
Year

Expiration Date

01/31/2026

12:01 a. m.

POLAR  
Make

SN1DAPPS0FC521569

Vehicle Identification Number

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**Form IC-NY-I-0001 02-20**

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## **IMPORTANT NOTICE BILLING REFERENCE INFORMATION**

### **Payment Services**

- Online at amig.com
- Automated Customer Service and Direct Customer Care: **1-800-543-2644**
- Agents Office: **(716) 856-3065**
- Company Addresses

#### **Standard Mailing:**

American Modern Home Insurance Company  
PO BOX 740167  
Cincinnati, Ohio 45274-0167

#### **Overnight Mailing:**

Fifth Third Bank  
5050 Kingsley Drive  
Cincinnati, Ohio 45227  
Attn: 1MOC1N - Rlhx 740167

### **Installment Payment Plan Options**

- Payment plan options are flexible, and vary by product. Your agent can advise which are available for your account.
- Electronic Funds Transfer (EFT) is available for automatic withdrawals from your checking or savings account or credit card. You may choose your payment withdrawal day of the month, selections are day 1 through 28.

### **How You Pay**

- Electronic (one time) payments can be made from a checking or savings account, debit card, and the following credit cards: Visa, MasterCard, Discover and American Express.
- Paper payments can be made by check or money orders, using one of the above addresses.
- Payments can be made online Monday through Friday from 7:00am to 12:00am EST, and Saturday and Sunday from 8:00am to 9:00pm EST.

### **Charges**

- **Service Charge** of \$7.00 applies for each installment, except for annual payment plans.
- **Late Charge** of \$15.00 may be assessed, if payment is received after due date and a notice of cancellation is generated.
- **Reinstatement Charge** of \$25.00 will be assessed if the company elects to rewrite or reinstate your policy when the amount due is paid after the cancellation date.
  - Reinstatement is not guaranteed and may or may not include a gap in coverage.
- **Non Sufficient Funds (NSF) Charge** of \$20.00 will be assessed for any payments returned from the issuing bank due to unavailable funds.



## IMPORTANT NOTICE TO SENIOR CITIZENS THIRD PARTY NOTIFICATION - NEW YORK

If you are a named insured and age 65 or older, New York law permits you to designate a third party to whom we will send a duplicate copy of any cancellation or nonrenewal notice issued to you for your personal insurance policies.

If you are interested in designating someone to receive such duplicate notices, you should discuss this with them and obtain their approval. Complete the lower portion of this form by:

1. Entering the third party's name and address;
2. Signing and dating this form;
3. Having the third party sign and date it; and
4. Returning it certified mail, return receipt requested, to:

ATTENTION: CUSTOMER CARE SERVICES  
PO BOX 5323  
CINCINNATI, OH 45201-5323

Keep a copy of the completed form for your records. The third party designation will become effective no later than ten (10) business days after we receive the completed form signed by both you and the third party designee. You may terminate the third party designation by sending written notification by certified mail, return receipt requested, to the designated third party and us.

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### Request To Designate A Third Party To Receive A Copy Of Policy Termination Notices

Insured's Name: Casper Norcross  
Address: PO BOX 1185  
OLD FORGE NY 13420

Policy Number: 103-194-455

Check Policy Type:  
Homeowners                                   
Automobile                                   
Watercraft                                 

I designate the following person to receive a duplicate copy of any cancellation or nonrenewal notice that you might send me for the policy number shown above.

Name:                                                 

Street:                                                 

City:                                                  State:                                  Zip:                                 

                                                                  
Signature of Insured

                                                                  
Date

**I accept the designation above. I understand my designation as a third party shall not constitute acceptance of any liability on my part or the insurer for services provided to the senior citizen insured. If I decide to terminate my designation, I must send written notification by certified mail, return receipt requested, to both the insured and the insurer.**

                                                                  
Signature of Third Party Designee

                                                                  
Date



## **IMPORTANT NOTICE SUPPLEMENTAL SPOUSAL LIABILITY COVERAGE - NEW YORK**

New York State law requires an insurer issuing or delivering a Policy that satisfies the requirements of New York Vehicle and Traffic Law article 6 to provide supplemental spousal liability insurance, unless a named insured elects, in writing, to decline and refuse such insurance in the Policy.

Supplemental spousal liability insurance provides bodily injury liability coverage under a motor vehicle insurance Policy when a person is injured or killed in a motor vehicle accident caused by the negligence of the person's spouse.

This coverage is included within the Policy's bodily injury liability limits and does not increase the amount of those limits. For example:

Insured's bodily injury Policy coverage limit: \$100,000 / \$300,000

Insured's bodily injury damage claim paid to spouse: \$75,000

Insured's bodily injury Policy coverage limit available to all other claimants, subject to a maximum of \$100,000 per person: \$225,000

This example assumes the spouse and other claimants involved in the accident have a right to sue the insured for economic loss or for non-economic loss (i.e., pain and suffering) sustained as a result of a "serious injury" as defined in Insurance Law Section 5102(d). It must also have been shown that there was negligence on the part of the insured.

If you decline this coverage, then the injured or deceased spouse would not be covered under the bodily injury liability coverage in the Policy.

The additional premium for supplemental spousal liability insurance is 5% of the charged Bodily Injury Liability premium shown on your Declarations Page of this Policy. If you do not decline or have not previously declined this coverage in writing, supplemental spousal liability insurance coverage is automatically included in your motor vehicle insurance Policy. If supplemental spousal liability insurance is not declined in writing, failure to pay the supplemental spousal liability insurance premium may result in the issuance of a Policy cancellation notice for nonpayment of premium.

No coverage is provided by this notice, nor can it be construed to replace any provision of your Policy. You should read your Policy and review the Declarations Page for complete information on the coverages you are provided. If there is a conflict between the Policy and this notice, **THE PROVISIONS OF YOUR POLICY SHALL PREVAIL. PLEASE READ YOUR POLICY CAREFULLY.**



**RENTAL VEHICLE COVERAGE  
NOTICE TO POLICYHOLDERS - NEW YORK**

**\*\*Rental Vehicle Coverage Premium Charge YES: \_\_\_\_\_ NO:   X**

**\*\*If YES, Amount of Rental Vehicle Coverage Premium: \_\_\_\_\_**

The Rental Vehicle Coverage endorsement to this policy provides protection in the event of damage to, or loss of, a rental vehicle, including loss of use, as described in the endorsement.

Rental Vehicle Coverage is mandated by New York State law to reduce problems that confront consumers and leave them vulnerable to major unanticipated costs when dealing with rental vehicle companies.

This Rental Vehicle Coverage protects you whenever rental vehicles are rented and operated anywhere within the United States, its territories or possessions, and Canada.

In the event that a premium is at any time charged or increased for Rental Vehicle Coverage, you have the right to reject this coverage and not pay such charge, if you so inform your insurer within ten calendar days after you receive notice that such a premium charge or increase will be made for Rental Vehicle Coverage.

Please review the Rental Vehicle Coverage endorsement itself. If, as indicated at the top of this notice, there is a premium charge or increase and you wish to reject Rental Vehicle Coverage — or you simply wish to obtain additional information regarding this coverage — please contact your insurance agent or broker, or call our toll-free telephone number: 800-543-2644.



## **IMPORTANT INSURANCE INFORMATION FOR POLICYHOLDERS - NEW YORK**

- (1) Financial security (insurance) shall be maintained without interruption during the entire registration period regardless of whether the vehicle is driven.
- (2) License plates must be surrendered before insurance is cancelled or suspended without exception. This is compliance with New York State law. Surrendering license plates before cancellation of insurance will prevent communications from DMV based on cancellation that insurers are required by law report to DMV.
- (3) Policyholders moving from New York State must coordinate the surrender of New York State license plates and cancellation of a New York State insurance policy with obtaining a new registration and insurance policy in another state. Again, this will prevent DMV communications based on cancellation reported by insurers.
- (4) Insurers must provide policyholders with at least two identical ID cards for each vehicle insured. ID cards represent that insurance is provided for the named insured and the described vehicle, as applicable, as of the effective date shown thereon.
- (5) Encrypted 2D bar codes on ID cards contain tamper proof security features that prevent ID card fraud. The bar code contains information about the policy, effective dates of coverage and issuance date, registrant name and address, vehicle description (as applicable) and the issuer of the ID card.
- (6) Some insurers and agents are using software that allows ID cards to be either e-mailed or faxed. Successful faxing requires equipment in good working order both sending and receiving. Faxed ID cards are only acceptable if the ID card contains a large faxable bar code that scans (is readable).
- (7) Policyholders should check to be sure that the name and the vehicle identification number (VIN) on all ID cards are identical to the name and VIN on all the registrations. Policyholders should immediately notify their agent and/or insurer of any discrepancies. Agents and/or insurer must issue corrected ID card and change policy records accordingly.
- (8) Policyholders must keep one ID card in the vehicle at all times.
- (9) An ID card must, upon demand, be shown to a law enforcement officer, judge, hearing officer or any person with whom the insured or other driver may have had an accident. In the event of an accident, the insured or driver can also demand to see the other driver's ID card.
- (10) The failure to produce an ID card at the request of a law enforcement officer is presumptive evidence of uninsured operation for which the driver may be given a ticket. An ID card must be produced upon demand by any driver of a vehicle; not just the registrant.
- (11) If the second ID card is not currently required for registration purposes it should be kept in a safe place since it may be required to be submitted to DMV as proof of insurance in the future.
- (12) Upon loss of an ID card the insured shall contact the insurance company, agent or broker, not DMV.
- (13) An ID card is only as good as the policy that it represents. If for any reason the insurance policy is terminated, then the ID cards issued in conjunction with such policy are void. Any use of such invalid ID cards may be a violation of law.
- (14) Failure to maintain liability insurance coverage continuously throughout the registration period even if the vehicle is not in use may result in the suspension of the registration and driving privileges. Registrants if eligible may opt to pay a civil penalty for each day that a vehicle was registered and uninsured one time in a three-year period if the lapse in coverage does

not exceed 90 days. A 20-day revocation may be imposed on for hire vehicles such as taxis, liveries, buses, rentals and so forth.

- (15) Driving without insurance, a valid registration or driver's license is subject to severe sanctions under the law. A driver may be arrested and incarcerated and the vehicle impounded. Such driver is subject to fines and surcharges in a court of law. In cases of uninsured operation DMV will impose mandatory revocation of registration and driver's license as well as a substantial civil penalty.
- (16) Fraudulent issuance or use of an ID card as proof of a non-existent policy is punishable as a misdemeanor under New York State law.

## IMPORTANT NOTICE - DRIVING WHILE IMPAIRED - NEW YORK

### TO ALL OPERATORS OF MOTOR VEHICLES IN NEW YORK STATE

As your insurance company, we are required by law to advise you of the legal and financial consequences of being convicted of operating a motor vehicle while under the influence of alcohol or drugs. We strongly endorse the message conveyed by the law -- that it does not pay to drink and drive.

Alcohol or drug impairment is a major problem involving not only the impaired driver, but other innocent drivers and pedestrians. We are constantly reminded of the serious consequences of drinking and driving, yet property damage, injuries and deaths caused by alcohol or drug-impaired driving continue to be a major problem. In fact, studies (such as those published in "Fatality Facts 2010" by the Insurance Institute for Highway Safety - Highway Loss Data Institute) show that alcohol or drug use is a contributing factor in a significant number of all fatal motor vehicle accidents, as shown in the following table.

**Percent of Fatally Injured Passenger Vehicle Drivers (with BAC  $\geq$  .08%)**

|                                          |     |
|------------------------------------------|-----|
| Overall                                  | 33% |
| Nighttime (9 p.m. - 6 a.m.)              | 59% |
| Weekends (6 p.m. Friday - 6 a.m. Monday) | 45% |
| Weekdays                                 | 25% |
| Nighttime single-vehicle crashes         | 68% |

In recent years New York State has made significant changes to strengthen its driving while intoxicated laws, and these changes have extremely serious consequences for motorists who choose to drive while intoxicated or impaired by alcohol or drugs. A new crime of aggravated driving while intoxicated ("Agg DWI") was created, which prohibits: driving a motor vehicle while having a blood alcohol content ("BAC") of .18 % or more; or committing most driving under the influence of alcohol or drugs offenses while a child who is 15-years-old or younger is a passenger. In addition, a new crime of driving while ability impaired by the combined influence of drugs or of alcohol and any drug or drugs ("DWAI Combined Influence") was created.

The law generally prohibits "plea bargaining" to a non-alcohol/drug-related driving offense. Moreover, every motorist who is convicted of driving while intoxicated ("DWI") or Agg DWI must be sentenced to probation or conditional discharge (in addition to any fines or imprisonment) and in connection with that sentence, must install at the motorist's own expense an ignition interlock device ("IID") in all vehicles that the motorist owns or operates (with the exception of certain employer-owned vehicles) for at least six months. In addition to the criminal penalties associated with driving under the influence of alcohol or drugs convictions, such convictions also carry with them substantial driver's license suspension or revocation periods. Motorists who are convicted of any alcohol or drug related driving offense (even if it is a traffic infraction as opposed to a crime) must pay a \$750 driver responsibility assessment ("DRA") in addition to fines, mandatory surcharges, and other related fees and penalties.

In addition to facing prosecution for the various alcohol and drug-related driving offenses defined in the Vehicle and Traffic Law ("VTL"), motorists who injure or kill others while driving under the influence of alcohol or drugs may be charged with committing crimes under the Penal Law. New laws have increased the penalties for vehicular assault and vehicular manslaughter, and new crimes of aggravated vehicular assault and aggravated vehicular homicide have been created as part of New York's continuing efforts to punish intoxicated and impaired drivers who injure or kill others.

This notice provides general information on the penalties for convictions of operating a motor vehicle while under the influence of alcohol or drugs. Be aware that stiffer penalties are levied in certain situations involving a motorist who holds a commercial driver's license ("CDL") or for convictions of such impairment while operating a commercial vehicle, especially when transporting certain hazardous materials.

Please familiarize yourself, and anyone else who operates your vehicle, with this important information. Please remember: **If you drink, don't drive!**

## **BASIC PENALTIES, DEGREE OF IMPAIRMENT AND INSURANCE PENALTIES**

If you are convicted of an alcohol or drug related driving offense defined in the VTL, then there are extremely serious consequences. Some of the consequences are criminal or penal in nature, while others are civil or administrative in nature.

The criminal consequences may include all or some of the following: court imposed fines and surcharges, a sentence of probation or conditional discharge with a condition that you install and maintain an IID in all vehicles you own or operate, and imprisonment.

If you cause a death or serious injury as a result of a traffic accident while intoxicated or impaired by alcohol or drugs, then you may face additional criminal charges under the Penal Law for vehicular assault, aggravated vehicular assault, vehicular manslaughter, and aggravated vehicular homicide, punishable by up to 15-25 years in prison.

The civil or administrative consequences will include fines, mandatory surcharges and related fees levied by the Department of Motor Vehicles ("DMV"), and the suspension or revocation of your driver's license by DMV. You also will be charged a \$750 DRA payable in three annual payments of \$250, in addition to any fines and mandatory surcharges and related fees that are imposed. If you fail to make a required DRA payment, then your license will be suspended indefinitely until the amounts owing are paid.

If you are convicted of an alcohol or drug related driving offense in New York State, then depending on the severity of the offense or if you had prior offenses, your license will be suspended for 90 days at a minimum or revoked for a minimum of six to 18 months.

If you are convicted of an alcohol or drug related driving offense inside or outside of New York State that you committed when you were under the age of 21, then the license consequences are generally more severe: if it is a first offense, then your license will be revoked for at least one year and if it is a second or subsequent offense, then your license will be revoked for at least one year (18 months for Agg-DWI offense in NYS) or until you become 21, whichever is **longer**.

If you are age 21 or older and you are convicted of an out-of-state alcohol-related driving offense, then in addition to the penalties imposed by the state where the offense occurred, your New York driver's license will be revoked for at least 90 days; if the out-of-state offense is a drug-related driving offense, then your driver's license will be revoked for at least six months.

If you are the holder of a CDL and you commit an alcohol or drug-related driving offense (regardless of whether you were driving an automobile or a commercial vehicle at the time of the offense), then your CDL will be revoked for at least one year. A motorist holding a CDL who commits two such violations will have his or her CDL revoked for at least 10 years and a third violation will cause a permanent, lifetime revocation.

Although refusing to take a chemical test (of breath, blood, or urine) is not a crime or traffic infraction, a driver who meets the criteria for being considered a "first offender" and who refuses to take a chemical test may have his or her driver's license revoked for at least one year (18 months for a CDL) and must pay a civil penalty of \$500 (\$550 for a CDL). If you are considered a repeat offender due to a prior refusal or conviction for an alcohol or drug-related driving offense or for certain other offenses, then you will be required to pay a civil penalty of \$750 and may have your driver's license revoked for at least one year (10 years minimum for a CDL).

If your license is suspended or revoked for commission of an alcohol or drug-related driving offense, then you may be eligible for a conditional license ("CL") that will afford you some limited driving privileges during the sanction period (no CDL privileges are granted by a CL). In order to obtain a CL, you will have to enroll in an approved drinking driver program ("DDP"), pay the required fees, and meet other eligibility requirements. DMV charges a \$75 administrative fee upon DDP enrollment, and the DDP charges an additional course fee of up to \$225. You may be referred by the DDP for formal substance abuse evaluation or treatment at an additional cost. If you fail to complete the DDP or any required evaluation or treatment, then your CL will be revoked. If you commit almost any traffic infraction while holding a CL, then the CL will be revoked. Typically, if your CL is revoked, your original license suspension or revocation will be reinstated for its full length with no credit being given for the time you held the CL. During a suspension or revocation period, you may not lawfully drive for any reason.

If you do not have a CL and you drive while your license is suspended or revoked due to an alcohol or drug-related driving conviction or a chemical test refusal, you may be convicted of aggravated unlicensed operation of a motor vehicle ("AUO") in the second degree, subject to a fine of \$500 to \$1,000, and sentenced to either imprisonment for seven to 180 days, or probation with a possible condition of alcohol or drug treatment imposed.

### **HOW MANY DRINKS MAKE YOU LEGALLY INTOXICATED?**

In New York State, you are legally intoxicated when your BAC reaches .08%. You are considered to be driving while ability impaired (DWAI) when your BAC is more than .05%, but less than .08%.

Any amount of drinking will affect your judgment and coordination. The degree of impairment depends on four basic factors:

- (a) how much you drink;
- (b) how long you drink;
- (c) eating before or during drinking, as food slows absorption of alcohol; and
- (d) your body weight.

A 12-ounce can of beer, 5-ounce glass of wine, or a shot of 86-proof liquor all contain the same amount of alcohol. Your body metabolizes about one drink each hour. Only time will truly sober you up, not coffee, a walk, or a cold shower.

Therefore, if you consume more than one drink per hour, the likelihood is that you are at least DWAI if you weigh around 110 pounds and had two drinks, or DWAI if you had three drinks and weigh 170 pounds or more. As a rule of thumb for an average 140-160 pound person, BAC level rises .02% per hour per drink.

As an example, a 140-pound person who consumes five drinks in a two-hour period will have a .08% BAC (deducting .02% for the passage of time). Even if no more alcohol is consumed, that individual may not safely drive for at least four hours. Remember, any elevation in BAC will impair your judgment and coordination.

### **ALCOHOL/DRUG-RELATED CONVICTIONS AND YOUR AUTOMOBILE INSURANCE POLICY**

Suspension or revocation of your driver's license or the driver's license of any person who normally operates an automobile insured under your policy is just cause for your insurance company to cancel your automobile insurance policy.

A conviction of driving while impaired or intoxicated through the use of alcohol or drugs will probably result in non-renewal of your insurance policy, and in your inability to obtain insurance with another company in the voluntary market. You will then find yourself relegated to the New York Automobile Insurance Plan ("Assigned Risk Plan"), at a substantially higher cost.

Currently, under the Assigned Risk Plan, a conviction of operating a motor vehicle while intoxicated or impaired by the use of alcohol or drugs will result in a 75% surcharge, increasing your automobile insurance premiums for three years. Most automobile insurance companies also will surcharge your premiums substantially for any convictions of operating a motor vehicle while under the influence of alcohol or drugs.

### **NO-FAULT EXCLUSIONS/CONDITIONS**

Another reason for not driving in an intoxicated or impaired condition due to drinking or drugs is that your no-fault insurance benefits will not be available to you if you are injured as a result of this condition, except for necessary emergency health services rendered in a general hospital or by an ambulance attendant. Subsequent basic economic loss (such as general medical expenses, wage loss, other necessary expenses, or a death benefit) attributable to your own bodily injury would fall outside of the no-fault insurance system. It is important to be aware that your auto insurance company may seek to collect from you the amount paid or payable for the emergency health services provided to you if you are found guilty of operating the vehicle while under the influence of alcohol or drugs pursuant to the VTL. If you permit a "designated driver" (i.e. a non-DWI or non-DWAI person) to drive your vehicle for you, then full no-fault insurance benefits will be available to you and all occupants of your vehicle in case of an accident.

Here, then, are the sobering facts:

**FINES AND IMPRISONMENT PENALTIES FOR ALCOHOL/DRUG-RELATED DRIVING OFFENSES**

According to the VTL, the following penalties will be imposed for the noted violations:

**AGGRAVATED DRIVING WHILE INTOXICATED  
AGG-DWI (0.18 AND HIGHER BAC [BLOOD ALCOHOL CONTENT])**

| CONVICTION                                           | FINE ONLY <sup>1</sup>            | JAIL SENTENCE | LICENSE ACTION & REQUIREMENTS <sup>2</sup> |                                                          |
|------------------------------------------------------|-----------------------------------|---------------|--------------------------------------------|----------------------------------------------------------|
|                                                      |                                   |               | AGE 21 & OLDER                             | UNDER AGE 21                                             |
| 1st Offense (Misdemeanor)                            | Minimum \$1000<br>Maximum \$2500  | Up to 1 Year  | - Minimum 1-Year Revocation                | Minimum 1-Year Revocation                                |
| 2nd Offense within 10 Years (Class E Felony)         | Minimum \$1000<br>Maximum \$5000  | Up to 4 Years | - Minimum 18-Month Revocation              | 18-Month Revocation or until age 21, whichever is longer |
| 3rd Offense or more within 10 Years (Class D Felony) | Minimum \$2000<br>Maximum \$10000 | Up to 7 Years | - Minimum 18-Month Revocation              | 18-Month Revocation or until age 21, whichever is longer |

**DRIVING WHILE INTOXICATED (DWI or .08 and higher BAC)  
DRIVING WHILE IMPAIRED BY DRUG (DWAI-DRUG)  
DRIVING WHILE IMPAIRED BY COMBINED ALCOHOL & DRUG (DWAI-Combination)**

| CONVICTION                                           | FINE ONLY <sup>1</sup>            | JAIL SENTENCE | LICENSE ACTION & REQUIREMENTS <sup>2</sup> |                                                                     |
|------------------------------------------------------|-----------------------------------|---------------|--------------------------------------------|---------------------------------------------------------------------|
|                                                      |                                   |               | AGE 21 & OLDER                             | UNDER AGE 21                                                        |
| 1st Offense (Misdemeanor)                            | Minimum \$500<br>Maximum \$1000   | Up to 1 Year  | - Minimum 6-Month Revocation               | Minimum 1-Year Revocation                                           |
| 2nd Offense within 10 Years (Class E Felony)         | Minimum \$1000<br>Maximum \$5000  | Up to 4 Years | - Minimum 1-Year Revocation                | 1-Year Revocation or until age 21, whichever is longer <sup>3</sup> |
| 3rd Offense or more within 10 years (Class D Felony) | Minimum \$2000<br>Maximum \$10000 | Up to 7 Years | - Minimum 1-Year Revocation                | 1-Year Revocation or until age 21, whichever is longer <sup>3</sup> |

**DRIVING WHILE ABILITY IMPAIRED BY ALCOHOL  
DWAI (MORE THAN .05 UP TO .07 BAC)**

| CONVICTION                                        | FINE ONLY <sup>1</sup>          | JAIL SENTENCE  | LICENSE ACTION & REQUIREMENTS <sup>2</sup> |                                                        |
|---------------------------------------------------|---------------------------------|----------------|--------------------------------------------|--------------------------------------------------------|
|                                                   |                                 |                | AGE 21 & OLDER                             | UNDER AGE 21                                           |
| 1st Offense (Traffic Infraction)                  | Minimum \$300<br>Maximum \$500  | Up to 15 Days  | - 90-Day Suspension                        | Minimum 1-Year Revocation                              |
| 2nd Offense within 5 Years (Traffic Infraction)   | Minimum \$500<br>Maximum \$750  | Up to 30 Days  | - Minimum 6-Month Revocation               | 1-Year Revocation or until age 21, whichever is longer |
| 3rd Offense or more within 10 years (Misdemeanor) | Minimum \$750<br>Maximum \$1500 | Up to 180 Days | - Minimum 6-Month Revocation               | 1-Year Revocation or until age 21, whichever is longer |

**ZERO TOLERANCE LAW (ZTL)  
FOR DRIVER UNDER AGE 21 WITH .02 TO .07 BAC <sup>4</sup>**

| <b>CONVICTION</b> | <b>FINE ONLY <sup>1</sup></b>                             | <b>JAIL SENTENCE</b> | <b>LICENSE ACTION &amp; REQUIREMENTS <sup>2</sup></b>  |
|-------------------|-----------------------------------------------------------|----------------------|--------------------------------------------------------|
| 1st Offense       | \$125 civil penalty and \$100 fee to terminate suspension | N/A                  | 6-Month Suspension                                     |
| 2nd Offense       | \$125 civil penalty and \$100 re-application fee          | N/A                  | 1-Year Revocation or until age 21, whichever is longer |

**CHEMICAL TEST REFUSAL (CTR)**

| <b>CONVICTION</b>                                       | <b>FINE ONLY <sup>1</sup></b>                   | <b>JAIL SENTENCE</b> | <b>LICENSE ACTION &amp; REQUIREMENTS <sup>2</sup></b>                                                             |
|---------------------------------------------------------|-------------------------------------------------|----------------------|-------------------------------------------------------------------------------------------------------------------|
| Chemical Test Refusal (CTR)                             | \$500 civil penalty;                            | N/A                  | - Minimum 1-Year Revocation                                                                                       |
| CTR within 5 years of a previous DWI-related charge/CTR | \$750 civil penalty                             | N/A                  | - Minimum 18-Month Revocation<br>1-Year Revocation or until age 21, whichever is longer, for drivers under age 21 |
| CTR-under Zero Tolerance Law (ZTL)                      | \$300 civil penalty and \$50 re-application fee | N/A                  | Minimum 1-Year Revocation                                                                                         |
| CTR-Second or subsequent under ZTL                      | \$750 civil penalty and \$50 re-application fee | N/A                  | Minimum 1-Year Revocation                                                                                         |

**OUT-OF-STATE DRIVING UNDER THE INFLUENCE CONVICTIONS**

| <b>CONVICTION</b>                                                                   | <b>FINE ONLY <sup>1</sup></b> | <b>JAIL SENTENCE</b> | <b>LICENSE ACTION &amp; REQUIREMENTS <sup>2</sup></b>                                                                                                          |
|-------------------------------------------------------------------------------------|-------------------------------|----------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Driving Under the Influence (Out-of-State)                                          | N/A                           | N/A                  | - Minimum 90-Day Revocation<br>- Minimum 1-Year Revocation for drivers under age 21                                                                            |
| Driving Under the Influence (Out-of-State) with any previous alcohol-drug violation | N/A                           | N/A                  | - Minimum 90-Day Suspension (longer with certain prior offenses)<br>- Minimum 1-Year Revocation or until age 21, whichever is longer, for drivers under age 21 |

<sup>1</sup> Conviction fine only. Does not include any mandatory conviction surcharge, crime victims assistance fee or \$750 DRA, as applicable.

<sup>2</sup> The DMV determines when your license may be returned or reinstated based on state law or regulation.

<sup>3</sup> If a prior conviction is aggravated DWI, then revocation is 18-months or until age 21, whichever is longer.

<sup>4</sup> If your BAC is .05 or higher, then DWAI or DWI may be charged.

**NOTE:** Penalties (including fines and jail terms) may be higher for a person with multiple offenses, a CDL, or for violations while transporting certain types of passengers or materials.



## **IMPORTANT NOTICE**

### **ACCIDENT PREVENTION COURSE DISCOUNT - NEW YORK**

New York Law requires that a discount shall be applied to the Bodily Injury Liability, Property Damage Liability, Personal Injury Protection and Collision insurance policy coverages for drivers who successfully complete an approved Motor Vehicle Accident Prevention Course as approved by the NYS Department of Motor Vehicles (DMV). The current list of approved course sponsors is shown below:

#### **Internet Course and Other Alternative Delivery Method Course Providers**

**Empire Safety Council**

176 Terry Road  
Smithtown, NY 11787-5106  
1-800-246-3603  
<http://www.empiresafetycouncil.com>

**AAA Driver Improvement Program**

1415 Kellum Place  
Garden City, NY 11530  
1-844-708-0968  
<http://www.AAA.com/defensivedriving>

**National Safety Council**

200 Salina Meadows Parkway - Ste. 200  
Syracuse, NY 13212-4510  
1-800-962-3434  
<http://www.drivesafe.com/newyork>

**An Online Defensive Driving Course By Improv**

575 Lexington Avenue, 4th Floor  
New York, NY 10022  
1-800-660-8908  
<http://www.MyImprovNewYork.com>

**National Traffic Safety Institute (NTSI)**

201 Edward Curry Avenue - Suite 206  
Staten Island, NY 10314  
1-800-733-6874  
<http://www.ntsai.com/newyork>

**Driver Training Associates (DTA)**

125 High Rock Avenue, Suite 210  
Saratoga Springs, NY 12866  
1-800-558-9887  
<http://www.ticketschool.com/newyork>

**New York Safety Program (NYSP)**

8302 5th Avenue  
Brooklyn, NY 11209  
1-888-292-0397  
<http://www.nysponline.com>

**American Safety Council**

(Available in English and Spanish)  
218 West Main Street  
Malone, NY 12953  
1-877-689-0674  
<http://www.NewYorkSafetyCouncil.com>

**USA Training Company**

295 Greenwich Street - Suite 350  
New York, NY 10007  
1-800-972-4659  
<http://www.NewYorkDefensiveDriving.com>

**I DRIVE SAFELY, LLC**

99 Park Avenue, Suite 1560  
New York, NY 10016  
1-877-860-5275  
Internet Course  
<https://www.idrivesafely.com/defensive-driving/new-york/pirp/>

**AARP**

13805 West Road #22  
Houston, TX 77041  
1-800-350-7025  
<http://www.aarpdriversafety.org>

**DVD Video Course**

<http://www.takehome.com/new-york/>

**American Safety**

111 Washington Avenue - Suite 606  
Albany, NY 12210  
1-800-800-7121  
<http://www.bigappletrafficschool.com>

Please contact the New York State Department of Motor Vehicles for additional information.  
<https://dmv.ny.gov/pirp/online>

## Classroom Course Providers

### **Empire Safety Council**

176 Terry Road  
Smithtown, NY 11787-5106  
1-800-246-3603  
<http://www.empiresafetycouncil.com>

### **National Point and Insurance Reduction Course**

575 Lexington Avenue, 4th Floor  
New York, NY 10022  
1-800-660-8908  
<http://www.MyImprovNY.com>

### **www.LowCostAccidentPrevention.com**

535 South Broadway, Suite 216  
Hicksville, NY 11801  
1-800-503-3389  
<http://www.LowCostAccidentPrevention.com>

### **National Safety Council**

200 Salina Meadows Parkway - Ste. 200  
Syracuse, NY 13212-4510  
1-800-962-3434  
<http://www.drivesafe.com/newyork>

### **National Traffic Safety Institute**

201 Edward Curry Avenue - Suite 206  
Staten Island, NY 10314-7105  
1-866-719-3735  
<http://www.ntsai.com/newyork>

### **New York Safety Program**

8302 5th Avenue - 2nd Floor  
Brooklyn, NY 11209-4511  
1-800-942-6874  
<http://www.nysp.com>

### **NYDDC LLC**

DBA Defensive Drivers Discount  
80 Business Park Drive, Suite 202  
Armonk, New York 10504  
1-877-697-2331  
<http://www.defensivedriversdiscount.com>

### **USA Training Company**

99 Washington Avenue - Suite 400  
Albany, NY 12210  
1-800-746-7690  
<http://www.newyorkdefensivedriving.com>

### **AARP**

780 3rd Avenue - 33rd Floor  
New York, NY 10017-2024  
1-866-227-7442  
<http://www.aarp.org/drive>

### **American Automobile Association (AAA)**

1415 Kellum Place  
Garden City, NY 11530-1690  
1-844-708-0968  
<http://www.AAA.com>

### **American Safety**

111 Washington Avenue - Suite 606  
Albany, NY 12210  
1-800-800-7121  
<http://www.bigappletrafficschool.com>

### **American Safety Council**

218 West Main Street  
Malone, NY 12953  
1-877-689-0674  
<http://www.safemotorist.com>

### **Driver Training Associates**

125 High Rock Avenue, Suite 210  
Saratoga Springs, NY 12866  
1-800-558-9887  
<http://www.ticketschool.com/newyork>

### **I DRIVE SAFELY**

800 Yonkers Avenue  
Yonkers, NY 10704  
1-877-374-8388  
<https://www.idrivesafely.com/defensive-driving/new-york>

The following organizations provide approved courses for their employees/members only. If you are an employee or member, contact the organization directly.

Nassau County Police Department  
NYC Fire Department EVOC Unit, Bureau of EMS  
NYC Police Department, Driver Education & Training Unit  
NYS Education Department c/o Eastern Suffolk BOCES  
NYS Department of Transportation  
New York State Police Academy  
Suffolk County Police Department

Please contact the New York State Department of Motor Vehicles for additional information.  
<https://dmv.ny.gov/pirp/classroom>

## **ADVISORY NOTICE TO POLICYHOLDERS REGARDING TRANSPORTATION NETWORK SERVICES - NEW YORK**

This is a Notice regarding your Personal Auto Policy. No coverage is provided by this Notice nor can it be construed to replace any provision of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided. If there is any conflict between the Policy and this summary, **THE PROVISIONS OF YOUR PERSONAL AUTO POLICY SHALL PREVAIL.**

This Notice provides information concerning ride-sharing arrangements through Transportation Network Companies (TNCs) and the potential insurance implications for TNC drivers.

TNCs typically offer a ride-sharing service which uses smart-phone applications and other Internet-based platforms to connect passengers with drivers who use personal autos to provide transportation services for a donation or fee.

Your policy's Liability Coverage contains an exclusion for an insured's liability arising out of the ownership or operation of a motor vehicle while the motor vehicle is used by a "transportation network company driver" who is logged into the "transportation network company's" "digital network" but is not engaged in a "transportation network company prearranged trip" or while the driver provides a "transportation network company prearranged trip". Similar exclusions also apply to Uninsured Motorists Coverage, Rental Vehicle Coverage and Personal Injury Protection Coverage, as well as Additional Personal Injury Protection Coverage, Medical Payments Coverage, Supplementary Uninsured/Underinsured Motorists Coverage and Coverage For Damage To Your Auto (if applicable).

As used in your policy:

- "Transportation network company" or "TNC" means a person, corporation, partnership, sole proprietorship, or other entity that is licensed pursuant to this article and is operating in New York state exclusively using a "digital network" to connect "transportation network company passengers" to "transportation network company drivers" who provide "TNC prearranged trips".
- "Digital network" means any system or service offered or utilized by a "transportation network company" that enables "TNC prearranged trips" with "transportation network company drivers".
- "Transportation network company driver" or "TNC driver" means an individual who:
  - Receives connections to potential "TNC passengers" and related services from a "transportation network company" in exchange for payment of a fee to the "transportation network company"; and
  - Uses a "TNC vehicle" to offer or provide a "TNC prearranged trip" to "transportation network company passengers" upon connection through a "digital network" controlled by a "transportation network company" in exchange for compensation or payment of a fee.
- "Transportation network company passenger" or "TNC passenger" means a person or persons who use a "transportation network company's" "digital network" to connect with a "transportation network company driver" who provides "TNC prearranged trips" to the "TNC passenger" in the "TNC vehicle" between points chosen by the "TNC passenger".
- "TNC prearranged trip" or "TNC trip" means the provision of transportation by a "transportation network company driver" to a "TNC passenger" provided through the use of a "TNC's digital network":
  - Beginning when a "transportation network company driver" accepts a "TNC passenger's" request for a "TNC trip" through a "digital network" controlled by a "transportation network company";

- Continuing while the "transportation network company driver" transports the requesting "TNC passenger" in a "TNC vehicle"; and
- Ending when the last requesting "TNC passenger" departs from the "TNC vehicle".

The term "TNC prearranged trip" does not include transportation provided through any of the following:

- Shared expense carpool or vanpool arrangements, including those as defined in Section 158-b of the New York Vehicle and Traffic Law; and
- Use of a taxicab, livery, luxury limousine, or other for-hire vehicle as defined in the New York Vehicle and Traffic Law, Section 19-502 of the Administrative Code of the City of New York, or as otherwise defined in local law.
- "Transportation network company vehicle" or "TNC vehicle" means a vehicle that is:
  - Used by a "transportation network company driver" to provide a "TNC prearranged trip" originating within the state of New York; and
  - Owned, leased or otherwise authorized for use by the "transportation network company driver";
  - Such term shall not include:
    - A taxicab, as defined in Section 148-a of the New York Vehicle and Traffic Law and Section 19-502 of the Administrative Code of the City of New York, or as otherwise defined in local law;
    - A livery vehicle, as defined in Section 121-e of the New York Vehicle and Traffic Law, or as otherwise defined in local law;
    - A black car, limousine, or luxury limousine, as defined in Section 19-502 of the Administrative Code of the City of New York, or as otherwise defined in local law;
    - A for-hire vehicle, as defined in Section 19-502 of the Administrative Code of the City of New York, or as otherwise defined in local law;
    - A bus, as defined in Section 104 of the New York Vehicle and Traffic Law;
    - Any motor vehicle weighing more than six thousand five hundred pounds unloaded;
    - Any motor vehicle having a seating capacity of more than seven passengers; and
    - Any motor vehicle subject to Section 370 of the New York Vehicle and Traffic Law.

Unless indicated below, coverage options are not available under your policy for ride-sharing arrangements through Transportation Network Companies (TNCs) with respect to Liability Coverage, Uninsured Motorists Coverage, Rental Vehicle Coverage and Personal Injury Protection Coverage, as well as Additional Personal Injury Protection Coverage, Medical Payments Coverage, Supplementary Uninsured/Underinsured Motorists Coverage and Coverage For Damage To Your Auto (if applicable).

☐ If indicated to the left, coverage options are available under your policy for ride-sharing arrangements through Transportation Network Companies (TNCs).

You should:

- Review your Personal Auto Policy and any applicable TNC insurance policy carefully; and
- Contact your insurance agent or broker to discuss potential gaps in insurance coverage under your policy and the TNC policy which may arise while participating as a TNC driver.

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## AMERICAN MODERN INSURANCE GROUP U.S. PRIVACY NOTICE

|                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                             |                             |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------|-----------------------------|
| FACTS                                                                                                                                                                                                                  | WHAT DOES AMERICAN MODERN INSURANCE GROUP DO WITH YOUR PERSONAL INFORMATION?                                                                                                                                                                                                                                                                                                                                                                                               |                                             |                             |
| Why?                                                                                                                                                                                                                   | Insurance companies choose how they share your personal information. Federal and state law gives consumers the right to limit some but not all sharing. Federal and state law also requires us to tell you how we collect, share, and protect your personal information. Please read this notice carefully to understand what we do.                                                                                                                                       |                                             |                             |
| What?                                                                                                                                                                                                                  | <p>The types of personal information we collect and share depend on the product or service you have with us. This information can include:</p> <ul style="list-style-type: none"><li>■ Social Security number and payment history</li><li>■ insurance claim history and medical information</li><li>■ account transactions and credit scores</li></ul> <p>When you are no longer our customer, we continue to share information about you as described in this notice.</p> |                                             |                             |
| How?                                                                                                                                                                                                                   | All insurance companies need to share customers’ personal information to run their everyday business. In the section below, we list the reasons insurance companies can share their customers’personal information; the reasons American Modern Insurance Group chooses to share; and whether you can limit this sharing.                                                                                                                                                  |                                             |                             |
| Reasons we can share your personal information                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Does American Modern Insurance Group share? | Can you limit this sharing? |
| For our everyday business purposes – such as to process your transactions, maintain your account(s), respond to court orders and legal investigations, or report to credit bureaus or insurance support organizations. |                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Yes                                         | No                          |
| For our marketing purposes – to offer our products and services to you                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Yes                                         | No                          |
| For joint marketing with other financial companies                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Yes                                         | No                          |
| For our affiliates’ everyday business purposes – information about your transactions and experiences                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | Yes                                         | No                          |
| For our affiliates’ everyday business purposes – information about your creditworthiness                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | No                                          | We don’t share              |
| For our affiliates to market to you                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | No                                          | We don’t share              |
| For nonaffiliates to market to you                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | No                                          | We don’t share              |
| Questions?                                                                                                                                                                                                             | Call 1-800-543-2644 or go to <a href="https://amig.com/company/internet-privacy-policy/">https://amig.com/company/internet-privacy-policy/</a>                                                                                                                                                                                                                                                                                                                             |                                             |                             |

| <b>Who we are</b>                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|----------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Who is providing this notice?</b>                                             | The American Modern Insurance Group. A list of the entities is located in the American Modern Insurance Group U.S. Legal Entities Providing This Notice section at the end of this document.                                                                                                                                                                                                                                                                                  |
| <b>What we do</b>                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>How does American Modern Insurance Group protect my personal information?</b> | <p>To protect your personal information from unauthorized access and use, we use security measures that comply with federal law. These measures include computer safeguards and secured files and buildings.</p> <p>We restrict access to personal information to our employees, affiliates' employees, or others who need to know that information to service the account or to conduct our normal business operations.</p>                                                  |
| <b>How does American Modern Insurance Group collect my personal information?</b> | <p>We collect your personal information, for example, when you</p> <ul style="list-style-type: none"> <li>■ apply for insurance or pay insurance premiums</li> <li>■ file an insurance claim or provide account information</li> <li>■ give us your contact information</li> </ul> <p>We also collect your personal information from others, such as credit bureaus, affiliates, or other companies.</p>                                                                      |
| <b>Why can't I limit all sharing?</b>                                            | <p>Federal law gives you the right to limit only</p> <ul style="list-style-type: none"> <li>■ sharing for affiliates' everyday business purposes – information about your creditworthiness</li> <li>■ affiliates from using your information to market to you</li> <li>■ sharing for nonaffiliates to market to you</li> </ul> <p>State laws and individual companies may give you additional rights to limit sharing. See below for more on your rights under state law.</p> |
| <b>Definitions</b>                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>Affiliates</b>                                                                | <p>Companies related by common ownership or control. They can be financial and nonfinancial companies.</p> <ul style="list-style-type: none"> <li>■ Our affiliates include those with an American Modern Insurance Group name and other companies, such as American Family Home Insurance Company d/b/a in California as AFH Insurance Company and American Western Home Insurance Company.</li> </ul>                                                                        |
| <b>Nonaffiliates</b>                                                             | <p>Companies not related by common ownership or control. They can be financial and nonfinancial companies.</p> <ul style="list-style-type: none"> <li>■ American Modern Insurance Group does not share with nonaffiliates so they can market to you.</li> </ul>                                                                                                                                                                                                               |
| <b>Joint Marketing</b>                                                           | <p>A formal agreement between nonaffiliated financial companies that together market financial products or services to you.</p> <ul style="list-style-type: none"> <li>■ Our joint marketing partners include categories of companies such as banks.</li> </ul>                                                                                                                                                                                                               |

## Other important information

**For Insurance Customers in AZ, CA, CT, GA, IL, MA, ME, MN, MT, NV, NC, NJ, OH, OR, and VA only:** Under state law, under certain circumstances, you have the right see the personal information about you that we have on file. To see your information, write American Modern Insurance Group, Attention: Privacy Compliance, 7000 Midland Boulevard, Amelia, OH 45102-2607. American Modern Insurance Group may charge a reasonable fee to cover the costs of providing this information. If you think any of the information is not accurate, you may write us. We will let you know what actions we take. If you do not agree with our actions, you may send us a statement. If you want a full description of privacy rights that we will protect in accordance with the law in your home state, please contact us and we will provide it. We may disclose information to certain third parties, such as state insurance officials or law enforcement officers, without your permission.

**For Nevada residents only:** We may contact our existing customers by telephone to offer additional insurance products that we believe may be of interest to you. Under Nevada law, you have the right to opt out of these calls by adding your name to our internal do-not-call list. To opt out of these calls, or for more information about your opt out rights, please contact us by calling 1-800-543-2644 , emailing us at [PrivacyInquiries@amig.com](mailto:PrivacyInquiries@amig.com) or writing to American Modern Insurance Group, Attention: Privacy Compliance, 7000 Midland Boulevard, Amelia, OH 45102-2607. You are being provided this notice under Nevada state law. In addition to contacting American Modern Insurance Group, Nevada residents can contact the Nevada Attorney General for more information about your opt out rights by calling 775-684-1100, emailing [AgInfo@ag.nv.gov](mailto:AgInfo@ag.nv.gov) or by writing to: Office of the Attorney General, Nevada Department of Justice, Bureau of Consumer Protection: 100 North Carson Street, Carson City, NV 89701.

**For Vermont residents only:** Under Vermont law, we will not share information we collect about you with companies outside of our corporate family, unless the law allows. For example, we may share information with your consent, or to service your accounts. We will not share information about your creditworthiness within our corporate family except with your authorization or consent, but we may share information about our transactions or experiences with you within our corporate family without your consent.

**For California residents only:** Under California law, we will not share information we collect about you with companies outside of American Modern Insurance Group, unless the law allows. For example, we may share information with your consent or to service your accounts. We will limit sharing among our companies to the extent required by California law.

## American Modern Insurance Group U.S. Legal Entities Providing This Notice

This notice is being provided by the following American Modern Insurance Group companies to their customers located in the United States: American Modern Property and Casualty Insurance Company, American Modern Insurance Group, Inc. American Family Home Insurance Company d/b/a in California as AFH Insurance Company, American Modern Home Insurance Company d/b/a in California as American Modern Insurance Company, American Modern Insurance Company of Florida, Inc., American Modern Lloyds Insurance Company, American Western Home Insurance Company, American Southern Home Insurance Company, American Modern Select Insurance Company, Lloyds Modern Corporation, Midwest Enterprises, Inc., Specialty Insurance Services Corporation, and The Atlas Insurance Agency, Inc..



## AMERICAN FAMILY HOME INSURANCE COMPANY

### REGULATION NO. 150 COMPLIANCE MULTI-TIER DISCLOSURE - NEW YORK

In connection with this application for insurance we may review your credit report or obtain or use a credit based insurance score based on the information contained in the credit report.

This policy is issued as part of a multi-tier program as permitted by Regulation 150 of New York State Insurance Code. The tier placement has been determined based upon objective underwriting criteria. The policy was assigned to one of ten rate tiers. Tier 1 offers the lowest rate, while Tier 10 offers the highest. Your rate will vary based on the assigned tier. **Rates in some tiers may be higher than those of the New York Automobile Insurance Plan (NYAIP).** It is possible for you to move into a lower-rated tier upon renewal of your policy by one or more of the following means:

1. Improve your financial responsibility rating.
2. Continue to renew your insurance policy with American Family Home Insurance Company.

Should you have further questions regarding the multi-tier program, or if you need further information on how to improve your Financial Responsibility rating, you may contact your authorized insurance agent through whom you purchased this policy, or you may contact American Family Home Insurance Company, P.O. Box 5323, Cincinnati, OH 45201 or at 1-800-543-2644.



## **IMPORTANT NOTICE OPTIONAL BASIC ECONOMIC LOSS - NEW YORK**

### **PLEASE READ CAREFULLY**

To: All New York Motorcycle and All-Terrain Vehicle (ATV) Policyholders

The New York No-Fault Law and an Insurance Department Regulation requires that the following letter be sent to all New York motor vehicle, motorcycle and ATV policyholders. Because your insured vehicle is a motorcycle or ATV some of the wording in the required letter is not appropriate for motorcycle or ATV policyholders. While reading the following letter, please keep in mind that motorcycle/ATV No-Fault "PIP" coverage (including the optional "OBEL" coverage) applies only to loss sustained by pedestrians injured in motorcycle or ATV accidents. In other words motorcycle/ATV "PIP" coverage (including "OBEL" coverage if purchased) does not apply to any person while occupying any motorcycle, any ATV or any motor vehicle.

Dear Policyholder:

Optional Basic Economic Loss (OBEL) coverage is being offered to you as an enhancement of the Basic No-Fault coverage you are presently required to purchase. But before we describe this coverage, we would like to advise you what benefits Basic No-Fault coverage does and does not provide.

No-Fault coverage, otherwise known as Personal Injury Protection or "PIP" coverage, pays for expenses incurred by persons injured in a motor vehicle accident. This coverage does not pay to repair damage to your automobile.

Basic No-Fault, which you are required by law to purchase, provides coverage of up to \$50,000 per person in benefits for:

1. all necessary doctor and hospital bills and other health service expenses, payable in accordance with fee schedules established or adopted by the New York State Department of Financial Services; and
2. 80% of lost earnings up to a maximum monthly payment of \$2,000 for up to three years following the date of accident; and
3. up to \$25 per day for a period of one year from the date of the accident for other reasonable and necessary expenses the injured person may have incurred because of an injury resulting from the accident, such as the cost of hiring a housekeeper or necessary transportation expenses to and from a health service provider; and
4. a \$2,000 death benefit, payable to the estate of a covered person, in addition to the \$50,000 coverage for economic loss described above.

No-Fault benefits will be reduced by other benefits that are payable under Workers' Compensation, Social Security Disability, New York State Disability, and certain employer "wage continuation" plans where an employee does not lose any future sick leave benefits.

### **OPTIONAL COVERAGE AVAILABLE**

In addition to Basic No-Fault Coverage, you may also purchase OBEL coverage that will pay certain expenses, up to \$25,000, above the Basic No-Fault limit of \$50,000. OBEL coverage is different from other coverages in that a claimant can select the kinds of benefits to be paid under OBEL.

If you purchase OBEL coverage and if it appears likely that a claimant will use up the Basic No-Fault coverage, your insurer will send the claimant a form for the claimant to choose what expenses the \$25,000 in OBEL coverage will be used to pay. Under No-Fault, a claimant could include you, family members, passengers in your car, or pedestrians, if injured in an auto accident. The claimant will be able to choose one of the following four OBEL options and thereby direct the insurer to pay expenses for:

1. basic economic loss, whether health care expenses, loss of earnings from work, or other reasonable and necessary expenses;
2. loss of earnings from work;
3. psychiatric, physical or occupational therapy and rehabilitation; or
4. a combination of options 2 and 3.

The additional \$25,000 of OBEL coverage will be used only for costs incurred under the chosen option, which, once selected, the claimant cannot change.

If you have any questions, please contact your company or agent.

## REQUIRED NOTICE OF AVAILABILITY OF SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE - NEW YORK

### I. EXPLANATION OF THE DIFFERENCE BETWEEN STATUTORY UNINSURED MOTORISTS COVERAGE AND SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE (SUM COVERAGE)

Under New York law you must buy **either** Statutory Uninsured Motorists Coverage **or** Supplementary Uninsured/Underinsured Motorists Coverage (SUM Coverage), which includes the Statutory Uninsured Motorists Coverage. This section is an advisory explanation of the primary differences between these two types of coverages, but is not intended to be a substitute for a complete review of both coverages. If there is any conflict between the policy and this explanation, the provisions of **your** policy apply. If you have any questions regarding this information, please contact your agent, insurance company, or the New York Department of Financial Services for further explanation.

#### **TYPE 1: STATUTORY UNINSURED MOTORISTS COVERAGE**

Statutory Uninsured Motorists Coverage compensates you, or other persons insured under your motor vehicle insurance policy, for amounts that you, or your passengers, may be legally entitled to collect as damages for bodily injury or death from an accident caused by an owner or operator of an **uninsured motor vehicle**. An uninsured motor vehicle is a motor vehicle that either has no liability insurance coverage or is operated by a hit-and-run driver. In order to drive your automobile upon the roads of this State, you **must** obtain this coverage as your **minimum limits**.

If someone is injured as a result of an accident with an uninsured motor vehicle, your Statutory Uninsured Motorists Coverage can pay up to \$25,000 for each person injured, with a \$50,000 maximum for each accident. If someone is killed as a result of such an accident, your Statutory Uninsured Motorists Coverage can pay up to \$50,000 for each person killed, with a \$100,000 maximum for each accident resulting in death to two or more people. These limits are the **only** limits you can obtain under Statutory Uninsured Motorists Coverage.

Statutory Uninsured Motorists Coverage will pay for bodily injury or death only if the car accident happens **in-state**, that is, in the State of New York.

#### **TYPE 2: SUPPLEMENTARY UNINSURED/UNDERINSURED MOTORISTS COVERAGE (SUM COVERAGE)**

You have the right to purchase additional limits of insurance coverage, called Supplementary Uninsured/Underinsured Motorists Coverage (SUM Coverage). This coverage provides you, or other persons insured under your motor vehicle insurance policy, with the Statutory Uninsured Motorists Coverage (described above) plus additional coverages, which may provide you with a greater degree of protection.

SUM Coverage, similar to Statutory Uninsured Motorists Coverage, provides you, or other persons insured under your motor vehicle insurance policy, for amounts that you, or your passengers, may be legally entitled to collect as damage for bodily injury if there is an accident. Here, in contrast however, you have the opportunity to choose the amount of **uninsured motorists** coverage desired (from an offering from the insurance company which is provided below). Additionally, since there is a possibility of an accident occurring between you and an **underinsured motorist**, SUM Coverage can provide you with "underinsured" coverage, which is coverage for an accident between you and a car that has bodily injury liability insurance that is less than your own bodily injury liability limits that you have on your own car. However, please note that the SUM coverage cannot exceed the limits of the third-party liability coverage that you have on your own car.

Also, SUM Coverage provides coverage for bodily injury or death for not only in-state accidents, but also **out-of-state accidents**.

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### **IMPORTANT SUM NOTICE:**

For purposes of further clarification, New York law requires that the following explanation, as provided in 11 NYCRR 60-2.1, be provided to you in this notice:

- \* SUM provides additional insurance coverage for bodily injury, including death resulting therefrom, sustained by an insured, as a result of an accident involving a negligent owner or operator of another motor vehicle who:
  - (1) may have no insurance whatsoever; or
  - (2) even if insured, is only insured for third-party bodily injury coverage at relatively low liability limits, in comparison to the policyholder's own liability limits for bodily injury sustained by third-parties.
- \* An insurer shall not offer SUM coverage in an amount exceeding the third-party liability coverage limits purchased by the policyholder. The policy shall provide coverage for any insured under the policy for:
  - (1) bodily injury to such person, up to the limit of the SUM coverage purchased; and
  - (2) receive from the policyholder's own insurer payment for bodily injury sustained due to the negligence of the other motor vehicle's owner or operator.
- \* The maximum amount payable under the SUM coverage shall be the policy's SUM limit reduced and thus offset by any motor vehicle bodily injury liability insurance policy or bond payments received from, or on behalf of, any negligent party involved in the accident.

For purposes of further clarification regarding Transportation Network Companies (TNC) Services, 11 NYCRR 60-2.2 requires that every insurer writing motor vehicle liability insurance providing liability insurance coverage in satisfaction of the financial responsibility requirements of Vehicle and Traffic Law article 44-B must provide the following notice:

- \* if the policy provides liability coverage as required by Vehicle and Traffic Law section 1693(3), SUM coverage is being provided while the driver provides a prearranged trip;
- \* if the policy provides liability coverage as required by Vehicle and Traffic Law section 1693(2), SUM coverage is available while the driver is logged onto a transportation network company's digital network but is not engaged in a transportation network company prearranged trip, including the SUM limits being offered for purchase on the last page of this notice.

### **EXAMPLES:**

As provided in 11 NYCRR 60-2.2, the following examples, using per person limits unless otherwise noted, illustrate the proper application of SUM coverage:

#### **(1) Example One:**

|                                     |           |
|-------------------------------------|-----------|
| Insured's Bodily Injury Damages     | \$300,000 |
| Insured's Liability Limit           | \$500,000 |
| Insured's SUM Limit                 | \$250,000 |
| Other Motor Vehicle Liability Limit | \$25,000  |

Result: In this example, the insured has purchased the maximum amount of SUM coverage that must be offered by the insurer, provided that the insured has purchased bodily injury liability limits of at least \$250,000. Insured recovers \$25,000 from the negligent owner or operator of the other motor vehicle, and \$225,000 (\$250,000 minus \$25,000) under the SUM coverage, for a total recovery of \$250,000.

In the event that the negligent owner or operator of the other motor vehicle had no liability insurance at all, the insured would collect \$250,000 in SUM coverage from the insured's own insurer. However, if the owner or operator of the other motor vehicle was not negligent, then the insured would receive no SUM payments.

(2) Example Two:

|                                     |           |
|-------------------------------------|-----------|
| Insured's Bodily Injury Damages     | \$100,000 |
| Insured's Liability Limit           | \$25,000  |
| Insured's SUM Limit                 | \$25,000  |
| Other Motor Vehicle Liability Limit | \$25,000  |

Result: Insured recovers \$25,000 from the negligent owner or operator of the other motor vehicle. The insured receives nothing under the SUM coverage, which equals the mandatory UM coverage, since the liability limits on the other owner or operator's motor vehicle were not lower than the liability insurance limits on the insured's motor vehicle. If the insured's liability and SUM limits were both \$50,000, the insured would collect another \$25,000 in SUM coverage from the insured's own insurer.

(3) Example Three:

|                                     |           |
|-------------------------------------|-----------|
| Insured's Bodily Injury Damages     | \$60,000  |
| Insured's Liability Limit           | \$100,000 |
| Insured's SUM Limit                 | \$100,000 |
| Other Motor Vehicle Liability Limit | \$50,000  |

Result: Insured recovers \$50,000 from the negligent owner or operator of the other motor vehicle and \$10,000 under the SUM coverage, which is the difference between the amount of the insured's SUM coverage and the liability coverage available from the other motor vehicle owner or operator, limited by the amount of the insured's bodily injury damages.

(4) Example Four:

|                                     |           |
|-------------------------------------|-----------|
| Insured's Bodily Injury Damages     | \$150,000 |
| Insured's Liability Limit           | \$100,000 |
| Insured's SUM Limit                 | \$100,000 |
| Other Motor Vehicle Liability Limit | \$25,000  |

Result: If the insured and the owner or operator of the other motor vehicle were each 50 percent at fault for the accident, then the insured's total recovery would be \$75,000, in light of comparative negligence of the parties involved in the accident. The insured would recover \$25,000 from the negligent owner or operator of the other motor vehicle and \$50,000 under the SUM coverage.

On the other hand, if the owner or operator of the other motor vehicle was totally at fault for the accident, then the insured would recover \$25,000 from the negligent owner or operator and would then receive \$75,000 in SUM coverage from the insured's own insurer. Had the insured purchased liability and SUM limits of \$150,000 or more, the SUM recovery would then be \$125,000.

(5) Example Five:

|                                                    |                              |
|----------------------------------------------------|------------------------------|
| Insured's Bodily Injury Damages                    | \$25,000                     |
| Passenger's Bodily Injury Damages                  | \$25,000                     |
| Another Passenger's Damages that resulted in death | \$50,000                     |
| Insured's Combined Single Liability (CSL) Limit    | \$75,000                     |
| Insured's CSL SUM Limit                            | \$75,000                     |
| Other Motor Vehicle Liability Limit                | Uninsured (i.e. no coverage) |

Result: Since the other motor vehicle was uninsured, the full \$75,000 CSL SUM limit is available for all insured persons from this accident under the policy. However, since the accident involves insured persons who were both injured and killed, the mandatory UM limits of \$25,000 per person and \$50,000 per accident for injured persons and \$50,000 per person and \$100,000 per accident for persons killed in the accident are available. Therefore, the insured and first passenger each recover \$25,000 and the second passenger's estate recovers the full \$50,000 under the SUM coverage.

If the insured's CSL and CSL SUM limit were each \$300,000 and the insured's damages amounted to \$200,000, then all insured persons would be covered under the SUM coverage as the total damages (\$200,000 + \$25,000 + \$50,000 = \$275,000) are less than the \$300,000 CSL SUM limit.

## II. OFFERINGS

### A. OFFER OF STATUTORY UNINSURED MOTORISTS (UM) COVERAGE (SPLIT LIMITS)

Offer of UM Coverage      \$25,000 / \$50,000

### B. OFFER OF SUPPLEMENTARY UNINSURED MOTORISTS (SUM) COVERAGE (SPLIT LIMITS)

Offer of SUM Coverage

\$25,000 / \$50,000

\$50,000 / \$100,000

\$100,000 / \$300,000

\$250,000 / \$500,000

If you want to make any changes to your coverage limits, please contact your agent.

# AMERICAN MODERN HOME INSURANCE COMPANY

## MOTORCYCLE PROGRAM

### RATING STATEMENT AND DISCOUNTS - NEW YORK

The information on the following pages explains how we classified your vehicle. We established the classification based on statements made by or on behalf of the named insured.

- This classification is one of the components we use in developing your premiums for the following coverages:

Bodily Injury Liability  
Property Damage Liability  
Comprehensive  
Collision  
Medical Payments  
Statutory Uninsured Motorists  
Supplementary Uninsured Motorists  
Pedestrian Personal Injury Protection  
Optional Basic Economic Loss (OBEL)  
Passenger Liability

- We rate your policy based on the following:

Rating Factors;

Discounts;

Surcharges.

#### **Rating Factors**

**Symbol** - Symbol represents a classification of vehicles that are rated the same.

**Engine Size** - Engine size is the power of the engine measured in cubic centimeters.

**Model year** - Model year is the model year of the vehicle as defined by the manufacturer.

**Modification** - Modification would indicate a vehicle has been modified from its stock condition.

**Years of Ownership** - This is defined as how long the primary named insured has owned the vehicle that is being insured.

**Territory** - The vehicle garaging address is used to determine the defined territory and associated rate.

**Marital Status** - Marital status is categorized as Civil Union, Divorced, Domestic Partner, Married, Separated, Single, or Widowed for each driver.

**Driver Assignment** - Drivers are assigned to vehicles for rating purposes. This assignment is determined by a combination of driver age, marital status, and driving record (accidents and violations) within the experience period.

**Driver Age** - Driver age is calculated based on the actual Month / Day / Year of the policy term effective date minus the Month / Day / Year of the date of birth rounded down to the nearest integer.

**Driving Record** - The driving record is determined from the accidents and violations accumulated during the experience period for each driver. The experience period is the 36-month period prior to the policy term effective date.

**Liability Limit** - The limit the insured selects for third party coverage.

**Physical Damage Deductibles** - The amount an insured is responsible for in the case of a Comprehensive or Collision claim.

### **Discounts**

**Multi-Vehicle Discount** - This discount applies to the policy when 2 or more vehicles are insured on a policy excluding trailers.

**Association Membership Discount** - Provides a discount to a driver that is a member of an approved Association/Group.

**Safety Course Discount** - Provides a discount to the driver who completes a driver training or safety course.

## **UNDERWRITING TIER DISCLOSURE - NEW YORK**

In connection with this application for insurance we may review your credit report or obtain or use a credit based insurance score based on the information contained in the credit report.

This Policy is issued as part of an underwriting tier program as permitted by New York State Insurance Code. The tier placement has been determined based upon objective underwriting criteria. The Policy was assigned to one of ten rate tiers. Tier 1 offers the lowest rate, while Tier 10 offers the highest. Your rate will vary based on the assigned tier. It is possible for you to move into a lower-rated tier upon renewal of your Policy by one or more of the following means:

1. Remain insured with us.
2. Improve your Financial Responsibility rating.

Should you have further questions regarding the underwriting tier program, or if you need further information on how to improve your Financial Responsibility rating, you may contact your authorized insurance agent through whom you purchased this Policy, or you may contact American Modern Insurance Group, P.O. Box 5323, Cincinnati, OH 45201 or at 1-800-543-2644.



## AMERICAN FAMILY HOME INSURANCE COMPANY

### REGULATION NO. 150 COMPLIANCE MULTI-TIER DISCLOSURE - NEW YORK

In connection with this application for insurance we may review your credit report or obtain or use a credit based insurance score based on the information contained in the credit report.

This policy is issued as part of a multi-tier program as permitted by Regulation 150 of New York State Insurance Code. The tier placement has been determined based upon objective underwriting criteria. The policy was assigned to one of six rate tiers. Tier 1 offers the lowest rate, while Tier 6 offers the highest. Your rate will vary based on the assigned tier. **Rates in some tiers may be higher than those of the New York Automobile Insurance Plan (NYAIP).** It is possible for you to move into a lower-rated tier upon renewal of your policy by one or more of the following means:

1. Renew without a chargeable claim in the prior policy term.
2. Improve your financial responsibility rating.

Should you have further questions regarding the multi-tier program, or if you need further information on how to improve your financial responsibility rating, you may contact your authorized insurance agent through whom you purchased this policy, or you may contact American Family Home Insurance Company at P.O. Box 5323, Cincinnati, Ohio 45201 or at 1-800-543-2644.



THIS ENDORSEMENT IS ATTACHED TO AND MADE PART OF THE POLICY.  
PLEASE READ IT CAREFULLY.

## **SNOWMOBILE POLICY AMENDMENT OF POLICY PROVISIONS - NEW YORK**

### **DEFINITIONS**

Paragraph **G.**, **property damage**, is replaced by the following:

**G. Property damage** means physical injury to, destruction of or loss of use of property.

The following is added to paragraph **I.3.**:

This definition (**I.3.**) does not apply to **PART B - COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE.**

### **PART A - LIABILITY COVERAGE**

**A.** Paragraph **A.** of the **INSURING AGREEMENT** is replaced by the following:

#### **INSURING AGREEMENT**

**We** will pay damages for **bodily injury**, including damages for care and loss of services, or **property damage** for which any **insured** becomes legally responsible because of an accident involving **your covered snowmobile**. Damages include prejudgment interest awarded against the **insured**. **We** will settle or defend, as **we** consider appropriate, any claim or suit asking for damages which are payable under the terms of the policy. This applies even if the claim or suit is groundless. In addition to **our** limit of liability, **we** will pay all defense costs **we** incur.

**B.** The following are added to **SUPPLEMENTARY PAYMENTS**:

**We** will pay on behalf of an **insured**:

- 6.** Expenses incurred by an **insured** for first aid to others at the time of the accident.
- 7.** All costs taxed against an **insured** in any suit **we** defend.

**C.** Exclusion **A.1.** is replaced by the following:

**We** do not provide Liability Coverage for any **insured**:

- 1.** Who intentionally causes, or directs another person to cause, **bodily injury** or **property damage**.

**D.** Exclusions **A.6.** and **A.8.** are deleted.

**E.** The following Exclusion **A.9.** is added:

**We** do not provide Liability Coverage for any **insured**:

- 9.** For **bodily injury** to the spouse of that **insured**. However, **we** will provide Liability Coverage for an **insured** if named as a third-party defendant in a legal action commenced by his or her spouse against another party.

F. The **OTHER INSURANCE** provision is replaced by the following:

**OTHER INSURANCE**

If there is other valid and collectible insurance, **we** will pay only **our** share of the loss. **Our** share is the proportion that **our** limit of liability bears to the total of all applicable limits. However, any insurance **we** provide for a vehicle **you** do not own shall be excess over any other valid and collectible insurance, including physical damage insurance provided under this or any other policy.

**PART B - COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE**

The following is added to Exclusion **10.**:

However, this Exclusion **(10.)** does not apply to the interests of Loss Payees in **your covered snowmobile**.

The following provisions are added and apply in place of any conflicting policy provision:

**MANDATORY INSPECTION**

A. **We** have the right to inspect any:

1. Private **snowmobile** that **you** insure or intend to insure for **COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE** under this policy.
2. This right applies only to the extent authorized by Regulation 79 or Section 3411 of the New York Insurance Law.

B. **We** do not provide **COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE** for any additional or replacement **snowmobile** that **you** acquire until after **you**:

1. Notify **us**; and
2. Request coverage for that **snowmobile**.

However, this provision **(B.)** does not apply to a replacement **snowmobile** for the 3-day period beginning on the date that **you** become the owner if:

1. **You** acquire the **snowmobile** during the policy period; and
2. **We** provided **COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE** on the **snowmobile** that **you** replaced for at least 12 months prior to the date of replacement.

For each of the following that falls within the 3-day period, **we** will extend the period 1 day:

1. Saturday;
2. Sunday; or
3. Legal holiday.

**SNOWMOBILE REPAIRS**

When there is a loss to **your covered snowmobile** covered under Part **B**, **we**:

A. May not:

1. Condition payment on repair;

2. Require that repairs be made by a particular repair shop or concern; and
- B.** Are entitled to the following:
1. A completed "Certification of **Snowmobile** Repairs";
  2. An itemized repair bill prepared by the repairer, if **your covered snowmobile** is repaired; and
  3. An inspection of **your covered snowmobile**, whether or not **you** have it repaired.

#### **RECOVERY OF STOLEN OR ABANDONED SNOWMOBILES**

**We** have the right to take custody of **your covered snowmobile** for safekeeping when:

- A.** It is stolen or abandoned; and
- B.** **We** find out where it is.

#### **WAIVER OF COLLISION DEDUCTIBLE**

When there is a loss to **your covered snowmobile** insured for Collision Coverage, no deductible will apply if the loss was caused by a **collision** with another **snowmobile** insured by **us**.

The **PAYMENT OF LOSS** provision of Part **B** is replaced by the following:

#### **PAYMENT OF LOSS**

**We** may pay for loss or the cost to repair or replace the damaged or stolen property. **We** may, at **our** expense, return any stolen or damaged property to:

1. **You**; or
2. The address shown in this policy.

If **we** return stolen property, **we** will pay for any damage resulting from the loss. **We** may keep at an agreed or appraised value all or part of:

1. The stolen property; or
2. Property **we** determine to be a total loss or a constructive total loss.

When there is a loss to **your covered snowmobile** under this Part, **we** may not require that repairs be made by a particular repair shop or concern.

If **we** pay for loss in money, **our** payment will include the applicable sales tax for the damaged or stolen property.

#### **PART C - DUTIES AFTER AN ACCIDENT OR LOSS**

Part **C** is replaced by the following:

#### **DUTIES AFTER AN ACCIDENT OR LOSS**

**We** have no duty to provide coverage under this policy if the failure to comply with the following duties is prejudicial to **us**, except as provided in Paragraph **E**.:

- A.** **We** must be notified as soon as reasonably possible of how, when and where the accident or loss happened. Notice should also include the names and addresses of any injured persons and of any witnesses.

- B.** A person seeking any coverage must:
- 1.** Cooperate with **us** in the investigation, settlement or defense of any claim or suit.
  - 2.** Send **us** copies of any notices or legal papers received in connection with the accident or loss as soon as reasonably possible.
  - 3.** Submit, as often as **we** reasonably require:
    - a.** To physical exams by physicians **we** select. **We** will pay for these exams.
    - b.** To examination under oath and subscribe the same.
  - 4.** Authorize **us** to obtain:
    - a.** Medical records; and
    - b.** Other pertinent records.
  - 5.** Submit a proof of loss when required by **us**.
- C.** A person seeking Uninsured Motorists Coverage must also:
- 1.** Notify the police as soon as reasonably possible if a hit-and-run driver is involved.
  - 2.** Send **us** copies of the legal papers as soon as reasonably possible if a suit is brought.
- D.** A person seeking **COVERAGE FOR DAMAGE TO YOUR SNOWMOBILE** must also:
- 1.** Take reasonable steps after loss to protect **your covered snowmobile** and its equipment from further loss. **We** will pay reasonable expenses incurred to do this.
  - 2.** Promptly notify the police if **your covered snowmobile** is stolen.
  - 3.** Permit **us** to inspect and appraise the damaged property before its repair or disposal.
- E.** Failure to give notice to **us** as required under this policy within the time specified shall not invalidate any claim made by the **insured**, injured person or any other claimant, unless the failure to provide timely notice has prejudiced **us**. However, no claim made by the **insured**, injured person or other claimant will be invalidated if it shall be shown not to have been reasonably possible to give such timely notice and that notice was given as soon as was reasonably possible thereafter.

#### **PART D - GENERAL PROVISIONS**

The following is added to the **FRAUD** provision:

However, **we** will provide coverage to such **insured** for damages sustained by any person who has not made fraudulent statements or engaged in fraudulent conduct if such damages result from an accident which is otherwise covered under this policy.

The **LEGAL ACTION AGAINST US** provision is replaced by the following:

- A.** No legal action may be brought against **us** until there has been full compliance with all the terms of this policy. In addition, under Part **A**, no legal action may be brought against **us** until:

1. **We**, by written agreement with the **insured** and the claimant, agree that the **insured** has an obligation to pay; or
  2. The amount of that obligation has been finally determined by judgment after trial.
- B.** No person or organization has any right under this policy to bring **us** into any action to determine the liability of an **insured**.

The following is added to the **LEGAL ACTION AGAINST US** provision:

- C.** With respect to **bodily injury** claims, if **we** deny coverage or do not admit liability because an **insured**, the injured person, someone acting for the injured person or other claimant fails to give **us** notice as soon as reasonably possible, then the injured person, someone acting for the injured person or other claimant may bring an action against **us**, provided the sole question is whether the denial of coverage or non-admission of liability is based on the failure to provide notice as soon as reasonably possible.

However, the injured person, someone acting for the injured person or other claimant may not bring an action if within 60 days after **we** deny coverage or do not admit liability, **we** or an **insured**:

1. Brings an action to declare the rights of the parties under the policy; and
  2. Names the injured person, someone acting for the injured person or other claimant as a party to the action.
- D.** If **we** fail to pay damages for **bodily injury** or **property damage** for which the **insured** becomes legally responsible because of an accident within 30 days from the date notice of entry of judgment is served on the **insured** or the **insured's** attorney and **us**, then an action may be maintained against **us** for the amount of judgment, up to the limit of liability shown in the Declarations for which coverage is provided under this policy.

However, paragraph **(D.)** does not apply during a stay or limited stay of execution against the **insured** on such judgment.

The **TERMINATION** provision is replaced by the following:

- A. Cancellation.** This policy may be cancelled during the policy period as follows:
1. The named insured shown in the Declarations may cancel the entire policy by:
    - a. Returning this policy to **us**; or
    - b. Giving **us** advance written notice of the date cancellation is to take effect.
  2. **We** may cancel the entire policy by mailing to the named insured shown in the Declarations at the address shown in this policy:
    - a. At least 15 days' notice if cancellation is for nonpayment of premium; or
    - b. At least 20 days' notice in all other cases.

If **we** cancel during the first 60 days this policy is in effect, **our** notice of cancellation must state or include the reason for cancellation.
  3. After this policy is in effect for 60 days, or if this is a renewal or continuation policy, **we** will (subject to the laws of New York) cancel only:
    - a. For nonpayment of premium; or

b. If **your** driver's license or that of:

- (1) Any driver who lives with **you**; or
- (2) Any driver who customarily uses **your covered snowmobile**;

Has been suspended or revoked. This must have occurred:

- (1) During the policy period; or
- (2) Since the last anniversary of the original effective date if the policy period is other than one year.

This provision does not apply to one or more administrative suspensions from the same incident which terminate prior to the effective date of cancellation.

c. For discovery of fraud or material misrepresentation in:

- (1) Obtaining the policy; or
- (2) Presenting a claim.

If one of the reasons for cancellation listed in this paragraph **3.** exists, **we** may cancel the entire policy, even if the reason for cancellation pertains only to a new coverage or endorsement initially effective subsequent to the original issuance of this policy.

4. **Our** right to cancel applies to each and every;

- a. Coverage; or
- b. Limit;

afforded under this policy.

5. If **we** have the right to cancel this policy, **we** may instead condition continuation upon:

- a. Change of limits; or
- b. Elimination of any coverage;

not required by law. This applies only if **we** mail 20 days notice to the named insured shown in the Declarations at the address shown in this policy.

## **B. Nonrenewal**

1. If **we** decide not to renew or continue this policy, **we** will (subject to the insurance laws of New York) mail notice to the named insured shown in the Declarations. However, **our** right not to renew or continue this policy will be subject to the requirements of Section 3425 of the insurance law of New York.

2. If **we** have the right not to renew or continue this policy, **we** may instead condition renewal upon;

- a. Change of limits; or
- b. Elimination of any coverage;

not required by law. This applies only if **we** mail notice to the named insured shown in the Declarations.

3. The notice required by paragraphs **1.** and **2.** of this section must:
  - a. Be mailed to the address shown in this policy at least 45 but not more than 60 days, before the end of the policy period; and
  - b. State or include the reason for **our** action.
4. **We** are not required to mail notice of nonrenewal to the named insured shown in the Declarations if **we** are given written notice that this policy:
  - a. Has been replaced; or
  - b. Is no longer wanted.

This written notice may be given to **us** by:

- a. **You**;
- b. Another insurer; or
- c. **Your** representative.

#### **D. Other Termination Provisions**

1. A United States Postal Service certificate of mailing of any notice shall be sufficient proof of notice.
2. If this policy is cancelled, **you** may be entitled to a premium refund. If so, **we** will send **you** the refund. The premium refund, if any, will be computed according to **our** manuals. However, making or offering to make the refund is not a condition of cancellation.
3. The effective date of cancellation stated in the notice shall become the end of the policy period.

The following is added to the **TWO OR MORE POLICIES** provision:

#### **TWO OR MORE POLICIES**

If **we** issued to **you** any other policy (or policies) insuring the same risk of loss as this policy, the policy (or policies) with the lower limit(s) does/do not apply if the loss is covered on a primary, excess, contribution, or other basis by the policy with the highest limit. **Our** maximum liability, therefore, will not exceed the highest limit found in any one of the policies. If the policies issued by **us** insuring the same risk all have the same limit of liability, one will apply to the loss and the other(s) will not apply to the loss. This provision does not apply to **PART A - LIABILITY COVERAGE**.

The following provision is added:

#### **NOTICE**

Notice to **our** authorized agent shall be deemed notice to **us**. In addition, any written notice given by or on behalf of any claimant to **our** authorized agent, containing particulars sufficient to identify **you**, shall be deemed notice to **us**.

